

HOUSE JOINT RESOLUTION 289

By Travis

A RESOLUTION to commemorate the Centennial of the Scopes Trial in Dayton.

WHEREAS, in July 1925, the Scopes Trial drew the world's attention to Dayton, Tennessee, where the subject of evolution would become forefront in the minds of every legal scholar and spectator; and

WHEREAS, the Scopes Trial had an enduring impact on the nation's consciousness, as it sought to justify the coexistence of faith and science amid the advancing secularism of the early twentieth century; and

WHEREAS, in March 1925, the Tennessee General Assembly overwhelmingly passed legislation sponsored by Representative John W. Butler that made it illegal to teach "any theory that denies the story of Divine Creation of man as taught in the Bible, and to teach instead that man has descended from a lower order of animals"; and

WHEREAS, the American Civil Liberties Union (ACLU) viewed the act as unconstitutional and offered to represent a Tennessee educator in a test case of the statute; and

WHEREAS, learning of this offer, civic leaders in Dayton decided to pursue such a case in an effort to draw publicity to their community, choosing as their alleged violator John T. Scopes, a science teacher at the local high school, who may have discussed evolution with his students during a biology review session held in April 1924; and

WHEREAS, Mr. Scopes was quickly indicted for violating the so-called Butler Act by a special grand jury called by the local judge; and

WHEREAS, when the Scopes Trial opened on July 10, 1925, the defense team included several lawyers, most notably the legendary trial attorney Clarence Darrow; the prosecution

team included the Tennessee Attorney General and others, but its most famous member was the Great Commoner, orator, and politician William Jennings Bryan, who had been invited to serve as a special prosecutor; and

WHEREAS, Judge John T. Raulston ruled out expert testimony concerning the scientific status of evolution, and the prosecution focused on Mr. Scopes's violation of the act; thus, important underlying issues were largely ignored; and

WHEREAS, the dramatic climax of the Scopes Trial took place on July 20, 1925, when Clarence Darrow called William Jennings Bryan to the stand as an expert witness on the Bible; and

WHEREAS, during the ninety-minute examination, Mr. Darrow tested Mr. Bryan's knowledge of the Bible, and Mr. Bryan eventually admitted that he did not believe that every passage in the Bible could be taken literally; and

WHEREAS, court reconvened on July 21, 1925, and Mr. Darrow urged the jury to convict Mr. Scopes in anticipation of appealing the verdict; the jury returned a guilty verdict in less than ten minutes, and Judge Raulston levied the minimum fine of one hundred dollars against Mr. Scopes; and

WHEREAS, the antievolution crusade actually gained strength from the Scopes Trial, as Mr. Scopes's conviction showed that an antievolution statute could be upheld in court; and

WHEREAS, antievolution bills were subsequently passed in two additional states, and the place of evolution in the biology curriculum remained ambiguous nationwide, as schools and teachers shied away from teaching the concept and publishers deleted the topic from their biology textbooks; and

WHEREAS, the ACLU appealed Mr. Scopes's conviction to the Tennessee Supreme Court, which ruled that nothing in the Butler Act violated either the Tennessee Constitution or

the United States Constitution in regard to the establishment of religion by the government, as it did not require the teaching of anything; and

WHEREAS, while upholding the act, the Supreme Court reversed the conviction, finding that any fine over fifty dollars must be levied by a jury pursuant to the Tennessee Constitution; by imposing a higher fine from the bench, Judge Raulston had violated the Constitution; and

WHEREAS, the Butler Act remained in the Tennessee Code for the next forty years, until the General Assembly repealed the measure in 1967; even after repeal, the ghost of the Scopes trial continued to haunt the State; and

WHEREAS, over the years, attempts to eliminate or compromise the teaching of evolution emerged in Tennessee and across the nation; such attempts attracted local, national, and international media attention to the State, always identified as the site of the Scopes trial decades earlier; and

WHEREAS, today, schoolchildren and scholars still return to that courthouse on the square as the subject of the Scopes Trial becomes ever more relevant to contemporary public discourse; and

WHEREAS, in their campaign to gain publicity, the Dayton boosters of 1925 succeeded to a far greater degree than they could possibly have anticipated; and

WHEREAS, Tennessee's countless historical contributions have embedded the State's unique character into the consciousness of our beloved nation and should always be revered, for these are the events that have directed the course of history and will help determine our future; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that we commemorate the Centennial of the Scopes Trial in Dayton as a fundamental moment in the history of Tennessee and the United States as mankind continues

attempts to reconcile its faith in God while existing in a rapidly advancing technological landscape and secularist postmodern culture.

BE IT FURTHER RESOLVED, that an appropriate copy of this resolution be prepared for presentation with this final clause omitted from such copy and upon proper request made to the appropriate clerk, the language appearing immediately following the State seal appear without House or Senate designation.